

Mr George Fairlie
DP9
100 Pall Mall
St. James's
London
SW1Y 5NQ

Date: 29th January 2026

Town and Country Planning Act 1990 (as amended)
Town and Country Planning (Development Management Procedure) (England)
Order 2015 (as amended)

Dear Sir/Madam,

Application No: 26/00099/AOD

Location: ExCel
1 Western Gateway
Canning Town
London
E16 1XL

Proposal: Approval of details pursuant to Condition 38 (BREEAM Excellent) relating to Part 2 attached to Planning Consent 21/00965/FUL dated 09th March 2022.

The London Borough of Newham hereby gives notice with respect to your submission of details pursuant to planning permission 21/00965/FUL validated on 16 January 2026.

Condition 38 Part 2 is **APPROVED** subject to the details submitted and approved, and subject to the conditions and reasons stated within the accompanying report.

The Council has considered the provisions of the approved Environmental Statement and does not consider this application to warrant the need for further Environmental Impact Assessment.

Signed:



Darren Mackin,
Director of Place Making
London Borough of Newham

TOWN AND COUNTRY PLANNING ACT 1990

Applicant's Rights following the Grant or Refusal of permission

1. Appeals to the Secretary of State

Should you (an applicant/agent) feel aggrieved by the decision of the council to either refuse permission or to grant permission subject to conditions, you can appeal to the Secretary of State for the Department of Communities and Local Government – Section 78 of the Town and Country Planning Act 1990 / Sections 20 and 21 of the Planning (Listed Building and Conservation Areas) Act 1990. Any such appeal must be made within the relevant timescale for the application types noted below, beginning from the date of the decision notice (unless an extended period has been agreed in writing with the council):

- **Six months:** Full (excluding Householder and Minor Commercial applications), listed building, conservation area consent, Section 73 'variation/removal', Section 73 'minor-material amendment', extension of time, and prior approval applications.
- **12 weeks:** Householder planning, Householder prior approval and Minor Commercial applications.
- **8 weeks:** Advertisement consent applications.
- **No timescale:** Certificate of lawful development (existing/proposed) applications.

Where an enforcement notice has been issued the appeal period may be significantly reduced, subject to the following criteria:

- The development proposed by your application is the same or substantially the same as development that is currently the subject of an enforcement notice: **28 days of the date of the application decision.**
- An enforcement notice is served **after the decision on your application** relating to the same or substantially the same land and development as in your application and if you want to appeal against the council's decision you are advised to appeal against the Enforcement Notice and to do so before the Effective Date stated on the Enforcement Notice.

Appeals must be made using the prescribed form(s) of The Planning Inspectorate (PINS) obtained from www.planning-inspectorate.gov.uk or by contacting 03034445000. A copy of any appeal should be sent both to PINS and the council (attn: Planning Appeals Officer).

The Secretary of State can allow a longer period for giving notice of an appeal, but will not normally be prepared to use this power unless there are exceptional/special circumstances.

The Secretary of State can refuse to consider an appeal if the council could not have granted planning permission for the proposed development or could not have granted it without the conditions it imposed, having regard to the statutory requirements and provisions of the Development Order and to any direction given under the Order. In practice, it is uncommon for the Secretary of State to refuse to consider appeals solely because the council based its decision on a 'direction given by the Secretary of State'.

2. Purchase Notices

Should either the council or the Secretary of State refuse permission or to grant permission subject to conditions, the owner may claim that the land cannot be put to a reasonably beneficial use in its existing state nor through carrying out of any development which has been or could be permitted. In such a case, the owner may serve a purchase notice on the council.

This notice will require the council to purchase the owner's interest in the land in accordance with the provisions of Part IV of the Town and Country Planning Act 1990 and Section 32 of the Planning (Listed Buildings Conservation Areas) Act 1990.

3. Compensation

In certain circumstances compensation may be claimed from the council if permission is refused or granted subject to condition(s) by the Secretary of State on appeal or on reference to the Secretary of State. These circumstances are set out in Section 114 and related provisions of the Town and Country Planning Act 1990 and Section 27 of the Planning (Listed Buildings and Conservation Areas) Act 1990.

Delegated Report



Application for approval of details reserved by condition.

Case Officer:	Rajvinder Kaur	Valid Date:	16.01.2026
Application Number:	26/00099/AOD	8-Week Date:	12.03.2026
Deemed Discharge Notice:	No	PEA Date:	N/A
Address:	ExCel 1 Western Gateway Canning Town London		
Proposal:	Approval of details pursuant to Condition 38 (BREEAM Excellent) relating to Part 2 attached to Planning Consent 21/00965/FUL dated 09th March 2022.		

Assessment:

38 Part 2	BREEAM (amended by 23/01873/NONMAT dated 30 th August 2023)
1. Prior to occupation the interim certificate should be submitted confirming that the design for the building has achieved a minimum BREEAM rating of 'Excellent'. 2. Within 6 months of first occupation, the Building Research Establishment (BRE) final certificate confirming that the development design for the building has achieved a minimum BREEAM rating of 'Excellent', shall be submitted to and approved in writing by the Local Planning Authority. The BREEAM Post Construction Assessment shall be carried out on a sample of the development in accordance with an agreed methodology to ensure that the required minimum rating has been achieved and can be maintained. Reason: In the interest of energy efficiency.	
Details Submitted:	Final Certificate, cert no.BREEAM-0099-5977 Issue 02, prepared by BREEAM UK.
Officer Assessment:	A Final Certificate and accompanying cover letter has been submitted in accordance with the requirements of Part 2 of Condition 38. The submitted details confirm that the ExCel London Phase 3 has achieved a score of 76.3% indicating BREEAM Excellent rating. The details demonstrate the development accords with the requirements of Condition 38 Part 2. Part 1 of Condition 38 was approved under application referenced 23/02673/AOD on 14th December 2023. In this instance the report is recommended for approval prior to the expiry of the consultation period as no comments are required from consultees in order to assess the details. On the basis of the above the details are recommended for approval for Part 2.
Officer Recommendation:	Approve
Conditions and Reasons:	The development shall be implemented in accordance with the Details Submitted and APPROVED listed above only. In the interest of energy efficiency.

Officer Recommendation:	To approve the details identified as Submitted and APPROVED listed above, pursuant to condition 38 Part 2 attached to 21/00965/FUL dated 9 th March 2022.
Authorising officer Signature:	
Authorising officer	James Bolt, Senior Development Manager

Date:	29 January 2026
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Appendix 1:

The Council's decision in this instance arose following careful consideration of the relevant provisions of the Council's adopted development plan and of all other relevant material considerations, including the approved Environmental Statement. Of particular relevance to this decision were the following Framework and Development Plan policies and ES documents:	
<i>National Planning Policy Framework (MHCLG, December 2024)</i>	
<i>The London Plan (GLA, March 2021)</i>	D1 London's form, character and capacity for growth D3 Optimising site capacity through the design led approach
<i>Joint Waste Development Plan for the East London Waste Authority Boroughs (adopted February 2012)</i>	
<i>Newham Local Plan (December 2018)</i>	S1 Spatial Strategy and Strategic Framework SP1 Borough-wide Place-making SP3 Quality Urban Design within Places SC1 Environmental Resilience
<i>EIA Approved ES</i>	Environment Statement Volumes: 1, 2, 3 and 4 and Non-Technical Summary), prepared by Trium, dated April 2021
Draft Newham Local Plan On Monday 28th April Newham Full Council agreed to authorise officers to proceed under Regulation 22 to submit the Submission Newham Local Plan (appendix 1, the Draft Submission Local Plan approved by Cabinet in June 2024, as amended by the minor modifications provided in appendix 2) and associated documents (as set out in paragraph 5.2) to the Secretary of State for Housing, Communities and Local Government, for independent public examination. The weight which should be accorded to draft policies is guided by paragraph 49 of the National Planning Policy Framework (NPPF 2024) and paragraph 049 of the Planning Practice Guidance (Local Plans). These state that a new Local Plan may be given weight according to the stage of preparation of the emerging local plan, the extent to which there are unresolved objections to the relevant policies, and the degree of consistency between the relevant policies in the draft plan and the policies in the NPPF. An assessment of the policies in the Plan has now been made against the criteria in NPPF paragraph 49, including consideration of the representations received during the regulation 19 consultation, to determine the weight which can be placed on individual policies in the draft Local Plan. This assessment has been used to inform the determination of this application, alongside the adopted Development Plan documents: The Newham Local Plan 2018 or the London Legacy Development Corporation Local Plan 2020, and the London Plan 2021.	

Appendix 2:

Consultations:		
<i>Consultee:</i>	<i>Date Consulted:</i>	<i>Summary of response:</i>
LBN Environmental Health - Pollution General	27th January 2026	No comments required.
LBN Urban Design & Conservation	27th January 2026	No comments required.

Informative:

1. In dealing with this application, Newham Council has implemented the requirements of the National Planning Policy Framework and of the Town and Country Planning (Development Management Procedure) (England) Order 2015 to work with the applicant in a positive and proactive manner. As with all applicants, the Council have made available detailed advice in the form of our statutory policies in the relevant constituent parts of the Local Plan and London Plan, Supplementary Planning documents, and all other Council guidance, as well as offering a full pre-application advice service, so as to ensure that the applicant has been given every opportunity to submit an application which is likely to be considered favourably.